

JUN 15 2026

PRE-HEARING TECHNICAL & OPERATIONAL BRIEFING MEMO

TO: Mayor Carlos Rodriguez, Councilwoman Janice Lim, Councilwoman Tara Campbell (The Active Voting Quorum)

FROM: Peter Meng, P.E. (California Civil License #63423)

DATE: June 15, 2026

SUBJECT: Operational Resolution to Chicago Avenue Safety Hazard Under SHC §22630 (Ref: June 16 Hearing, Agenda Item 22)

CC: Peter Grant, City Manager; Jamie Lai, P.E., City Engineer; Marcia Brown, City Clerk; Todd Litfin, City Attorney

I. PURPOSE & EXECUTIVE SUMMARY

This briefing memo is submitted ahead of the June 16, 2026, Public Hearing to provide the three active voting members of the City Council, the City Manager, and the City Engineer with a legally compliant, financially sound, and operationally ready resolution to the long-standing safety hazard on the Chicago Avenue slope.

Rather than presenting an adversarial dispute on Tuesday night, this memorandum outlines how the City Council can utilize its express statutory authority under **California Streets and Highways Code** §22630 to adopt the FY 2026/27 LMAD assessment while simultaneously directing staff to remediate the documented biological fuel-load and pipeline encroachment hazards.

This solution:

1. **Requires NO General Fund expenditures.**
2. **Requires NO increase in assessments** to Zone L-5A property owners.
3. **Avoids any disruption** to the City's statutory assessment-levying timeline.
4. **Utilizes the City's previously approved, drought-tolerant, OCFA-compliant slope replanting plan** (*Arbutus 'Marina'* and *Searsia lancea* / African Sumac).

II. THREE OPERATIONAL REALITIES ESTABLISHED IN THE FINAL JUNE 16 REPORT

A technical review of the final Staff Report and the accompanying Willdan Annual Engineer's Report reveals that the administrative and financial mechanisms to resolve this hazard are already fully certified and in place:

1. Express Statutory Power to Amend (Staff Report, Page 2)

The Staff Report explicitly confirms that the City Council is not structurally or legally locked

into approving the Engineer's Report as-is:

"Under Streets and Highways Code §22630, the City Council may make changes to the Engineer's Report during or at the close of the public hearing."

2. Certified 50/50 Cost-Sharing Corridor (Engineer's Report, Page 26)

The final Willdan Report certifies that the Chicago Avenue slope is part of a designated **158,960 square foot landscape mitigation area** that is funded under a **50/50 cost-sharing agreement** between the L-5A assessment fund and the City's General Fund:

"The cost to maintain these landscape mitigation improvements will be funded equally by Zone L-5A assessments and the City."

This official certification confirms that the City possesses direct, joint control over the funding and maintenance of this exact corridor, removing any theoretical Proposition 218 special-benefit boundary restrictions.

3. Ample Available Cash Reserves (Engineer's Report, Page 67)

The final FY 2026/2027 budget for Local Landscaping Zone L-5A identifies an **Estimated Ending Fund Balance (Reserves) of \$209,481**, against a total Balance to Levy of **\$518,025**.

$$\text{Reserve Ratio} = \frac{\text{Ending Fund Balance}}{\text{Balance to Levy}} = \frac{\$209,481}{\$518,025} \approx 40.44\%$$

A reserve ratio of over ^{40%} represents an exceptionally healthy, liquid cash surplus. The cost to execute a targeted biological fuel reduction of the hazardous, overlapping pine and pepper tree canopies is a minor fraction of these reserves. Allocating these funds for safety maintenance represents a standard and appropriate use of district reserves.

III. TURN-KEY TECHNICAL RESOLUTION: THE 2021 CITY-APPROVED PLANT PALETTE

The physical resolution to this hazard requires zero design engineering overhead. The City of Yorba Linda Public Works Department has already engineered, mapped, and vetted a drought-tolerant, fire-safe replanting plan specifically for this slope corridor (originally drafted on November 3, 2021, and attached hereto as **Exhibit A**).

The technical parameters of this pre-vetted plan are perfectly aligned with municipal safety standards:

1. **Replacement Species:** The plan utilizes *Arbutus* 'Marina' (Marina Strawberry tree) and

Searsia lancea (African Sumac). Both species are evergreen, slow-growing, highly drought-tolerant, and reside on the **approved Orange County Fire Authority (OCFA) Fuel Modification Plant List**.

2. **Physical Clearances:** Unlike the encroaching invasive pine and pepper trees, these species feature a manageable, low canopy structure designed to preserve slope stability and prevent root-intrusion/thermal ignition hazards over the high-pressure pipeline utility corridor.
3. **Turn-Key Execution:** Because the City already has the spatial layout, species counts, and aerial overlays completed (see Exhibit A), Public Works staff can bypass the design phase and immediately proceed to procurement and execution.

IV. PROPOSED MUTUALLY BENEFICIAL MOTION

To ensure a seamless, legally compliant execution on Tuesday night, it is proposed that a member of the active voting quorum introduce the following motion during the discussion of the LMAD resolution:

"I move to approve Resolution No. 2026-5996 to levy the FY 2026/2027 assessments, with the condition that the City Council exercises its statutory authority under California Streets and Highways Code Section 22630 to direct the City Engineer to amend the Local Landscaping Zone L-5A scope of work and budget, allocating an amount not to exceed \$25,000 from the zone's estimated \$209,481 in reserves to immediately execute:

(1) The biological fuel reduction and removal of the non-compliant, intertwined pine and pepper tree canopies on the Chicago Avenue slope to establish necessary safety clearances over the high-pressure pipeline utility corridor; and

(2) The implementation of the City's previously proposed, drought-tolerant slope replanting and erosion control plan (using OCFA-compliant *Arbutus* 'Marina' and African Sumac) on the affected slope as detailed in the Public Works 2021 design plan (Exhibit A)."

Note on Budgeting: The maximum "Not-to-Exceed" allocation of \$25,000 represents a conservative ceiling that easily absorbs contract pricing inflation, site preparation, and both phases of slope clearance/replanting across the affected corridor.

V. BENEFITS OF THIS PRE-HEARING ALIGNMENT

- **For the City Council:** This motion provides the bare 3-0 voting quorum with immediate, documented risk mitigation. By proactively resolving a certified utility corridor hazard, the

Council shields the City, the district, and themselves from potential civil liability exposures.

- **For City Staff (Manager and Engineer):** This path utilizes existing, approved administrative avenues (§22630). Because the City has already drafted and vetted the drought-tolerant replanting plan for this slope, staff can immediately proceed to procurement and execution.
- **For the Community:** The neighborhood's fire safety is secured in compliance with California Fire Code and pipeline safety setbacks, the slope's aesthetic integrity is restored via drought-tolerant plantings, and the local district's tax-roll levy remains entirely on schedule.

VI. REQUEST FOR ADMINISTRATIVE AFFIRMATION

As a licensed Professional Engineer, my objective has always been the technical integrity and safety of our infrastructure. I am eager to work collaboratively with City Manager Peter Grant and City Engineer Jamie Lai to ensure this resolution is executed smoothly.

I respectfully request that staff review these certified figures and the attached City-designed technical plans (Exhibit A) prior to Tuesday's meeting so we can arrive at the public hearing aligned on a practical, safe, and mutually beneficial solution.

Respectfully submitted,

Peter Meng, P.E.

California Civil License #63423

Deeded Landowner, Chicago Avenue Slope Corridor

